

B. The Justifications Relied Upon to Create Absolute Judicial Immunity are Not Supported Within the Common Law or Legislative History of §1983.

Chief Justice Warren's rationale in *Pierson v. Ray*, 386 U.S. 547 (1967), for holding judges immune from liability in damages for judicial acts challenged under §1983, was two-pronged: (1) The doctrine of absolute immunity was incontrovertibly "established at common law;" *id.*, at 554; (2) [T]he legislative record gives no clear indication that Congress meant to abolish wholesale all common-law immunities." *Id.* However, while the Chief Justice's opinion for the Court recognized that the doctrine of judicial immunity is entirely judge-made, he failed to assess accurately both its common law background and the legislative history of §1983, *Pierson v. Ray*, 386 U.S. 547 (Douglas, J. dissenting); Kates, *Immunity of State Judges Under the Federal Civil Rights Acts: Pierson v. Ray Reconsidered*, 65 Nw. U. L. Rev. 615, 617-623 (1970); Note, *Immunity of Federal and State Judges from Civil Suit – Time for a Qualified Immunity?*, 27 Case West. Res. L. Rev. 727, 727-740 (1977); Note, *Liability of Judicial Officers Under Section 1983*, 79 Yale L.J. 322, 323-328 (1969).

1. Common Law

While some form of judicial immunity has a long history, see *Floyd v. Barker's Case*, 77 Eng. Rep. 1305 (Star Chamber 1608), that history is somewhat uneven. Originally, English law permitted civil suits against judges in actions complaining of false judgments, 2 F. Pollock & F. Maitland, *The History of English Law* 664-668 (2d ed. 1898). Later, when English common law created absolute immunity from tort liability, it applied only to judges of superior courts. The

Justices Protection Act, 11 & 12 Vict. c. 44 (1848); see, *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868). In this country, "absolute immunity from tort actions did not fully develop until the 1870's." Note, *Immunity of Federal and State Judges from Civil Suit – Time for Qualified Immunity?*, 27 Case West. Res. L. Rev. 727, 731 (1977). In a survey of 19th century case law in 14 randomly selected eastern and midwestern states, it was found that "in nine states the prevailing rule was absolute immunity, in four states immunity depended upon the judge's good faith, and in one state the law was inconclusive." *Id.* A more extensive survey revealed that "by 1871, thirteen states had adopted the absolute immunity rule; six states ruled that judges were liable if they acted maliciously, in nine states, courts had faced the issue but had not ruled clearly one way or the other; and nine states had apparently not faced the issue." Note, *Liability of Judicial Officers Under Section 1983*, 79 Yale L.J. 322, 326-327 (1969).

When, in 1868, the Supreme Court considered the issue for the first time, it declared that judges "are not liable to civil actions for their judicial acts, even when such acts are in excess of their jurisdiction, unless perhaps where the acts, in excess of jurisdiction are done maliciously or corruptly." *Randall v. Brigham*, 74 U.S. (7 Wall.) 523, 536 (1868). Thus, the Congress of the United States when it began its deliberations on H.R. 320, a bill to enforce the provisions of the fourteenth amendment, section one of which would eventually become §1983, could not have been laboring under the impression that the common law of either England or the United States unalterably, uniformly, or universally held that judges were absolutely immune from traditional remedies at law. It was not until a year after Congress enacted the predecessor to §1983 (17 Stat. 13 (1871)) that Justice

Field who had written *Randall*, amended the holding in *Bradley v. Fisher*, 80 U.S. (13 Wall.) 335 (1872)), so that judges in courts of general jurisdiction were not liable for their judicial acts even when they acted in excess of their jurisdiction and maliciously or corruptly.

In the light of this history, it is disingenuous to say that if Congress had wanted to abrogate absolute immunity for judges it "would [have] specifically so provided . . ." *Pierson v. Ray*, 386 U.S. 547, 555 (1967). The "diligent congressman, looking to the federal rule in 1871, would have had no reason not to surmise that an incorrect ruling of law, maliciously made, which deprived an individual of his constitutional rights, would probably subject the offending judge to liability." Note, *Liability of Judicial Officers Under Section 1983*, 79 Yale L.J. 322, 326 (1969).

There seemed to be little doubt seventy-five years later that absolute judicial immunity had been abolished. In deciding whether a civil action for compensatory and punitive damages could lie under then R.S. §1979 (now §1983) against a justice of the peace who refused a hearing to plaintiffs after arrest, the Third Circuit Court of Appeals ruled that "if the plaintiffs . . . were deprived of a federal right by state officials or officers acting 'under color of any law' . . . these officials must respond in damages to the plaintiffs as prescribed by R.S. §1979." *Picking v. Pennsylvania R. Co.*, 151 F.2d 240, 249 (3rd Cir. 1945). It continued, "As we read R.S. 1979 . . . we are compelled to the conclusion that Congress gave a right of action sounding in tort to every individual whose federal rights were trespassed upon by any officer acting under pretense of state law." *Id.*

at 249. Facing the issue of a common law bar to judicial liability the court found

that the conclusion is irresistible that Congress by enacting the Civil Rights Act sub judice intended to abrogate the privilege to the extent indicated by that Act and in fact did so. Section 1 of the third Civil Rights Act explicitly applied to 'any person' . . . We can imagine no broader definition. *Id.* at 250.

It is conceded that *Picking* was expressly overruled by the third circuit in *Bauers v. Heisel*, 361 F.2d 581 (3rd Cir. 1966). However, *Bauers* was decided before *Pierson* and relied primarily, but inappropriately, on the Supreme Court's decision in *Tenney v. Brandhove*, 341 U.S. 367 (1951). *Bauers v. Heisel*, 361 F.2d 581, 584-586 (3d Cir. 1966). *Tenney* held state legislators absolutely immune from money damage liability under one of the predecessors to §1983. But to ground judicial immunity on the basis of legislative immunity is genuinely to misread both the common law and the legislative history of the Civil Rights Act. "The immunity of legislators was more strongly entrenched in Anglo-American law prior to 1871 than was judicial immunity." Note, *Immunity of Federal and State Judges from Civil Suit — Time for a Qualified Immunity?* 27 Case West L. Rev. 727, 736 n.49 (1977). In 1951, when *Tenney* was decided, "forty-one of the forty-eight States . . . [had] specific provisions in their Constitutions protecting the privilege." *Tenney v. Brandhove*, 341 U.S. 367, 375 (1951). Moreover, one could find support for state legislative immunity in the Speech and Debate Clause of the United States Constitution, U.S. Const. Art. I, §6 (although three states had already written analogous provisions in their constitutions even before 1789, *Tenney v. Brandhove*, 341 U.S. 367, 373 (1951)). Thus,